

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

I signed up for an online shopping application and provided my name, phone number, delivery address and purchase information for placing orders. I later started receiving targeted calls and messages from unrelated financial and insurance companies that appeared to know details about my purchases. The shopping platform says that customer information may have been shared with marketing partners, but I do not remember giving clear consent for this use. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 15/Bharatiya Sakshya Adhiniyam (BSA), 2023

Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Privacy notices, consent logs and marketing communications may be electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant if those records are used in a proceeding.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- BSA is evidentiary only; it may govern proof of what notice/consent was actually presented and what disclosures occurred.

✓ STRENGTHS & RIGHTS

- 1
- Consent logs and historical privacy-policy versions can be important evidence.

✗ RISKS & OBLIGATIONS

- 1
- BSA does not create the underlying data-processing obligation.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve screenshots plus server/account records where obtainable.

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